

STATE OF MINNESOTA
COUNTY OF WADENA — SEVENTH JUDICIAL DISTRICT
In the Matter of the Dependency Proceeding Concerning B.J.C. and K.C.C.
Court File No. 80-JV-26-492
Case Type: Child in Need of Protection or Services (CHIPS)

MOTION FOR EXPEDITED RELIEF: IMMEDIATE RETURN OF CHILDREN,
DISMISSAL OF PETITION, AND WRITTEN RULINGS ON PENDING MOTIONS
EX PARTE RELIEF REQUESTED DUE TO ONGOING HARM AND CONSTITUTIONAL
VIOLATIONS ARISING FROM THE STATE'S SEPARATION OF THE FAMILY
PRO SE — JAMES CHAPMAN, FATHER

INTRODUCTION AND REQUEST FOR EXPEDITED, EX PARTE CONSIDERATION

I, James Chapman, father of B.J.C. and K.C.C., respectfully move this Court, on an expedited basis and, to the extent the Court is able to grant it, ex parte, for three forms of relief that cannot wait for the ordinary course of proceedings: (1) the immediate return of B.J.C. and K.C.C. to my care; (2) dismissal of the petition; and (3) written rulings on the motions already pending before this Court. Each day this family remains separated compounds harm that cannot later be undone, and each day these motions remain undecided leaves in place constitutional and statutory violations already fully briefed and awaiting this Court's ruling.

The threshold defect compelling this relief is that the Emergency Protective Care Hearing ("EPCH") in this matter occurred without my knowledge, without notice to me, and without any opportunity for me to appear, contest the allegations against me, present evidence, or cross-examine witnesses.

This is not a motion asking the Court to relitigate the merits of removal in the ordinary course. It is a motion asking the Court to recognize that a hearing already occurred — a hearing specifically designed to test whether emergency removal was justified — and that I was excluded from it entirely, through no fault of my own and, as set out in my Motion to Dismiss filed July 2, 2026, and my Supplemental Motion filed thereafter, as a direct and foreseeable result of the Department's own conduct. Because the ongoing separation of my children from a fit, non-offending parent inflicts continuing, compounding harm with every day that passes, and because that separation now rests on constitutional and statutory violations that remain undecided, I ask the Court to treat this motion, and the pending motions it incorporates, on an expedited basis and, to whatever extent its procedures allow, ex parte and immediately.

This motion incorporates by reference, and does not replace or narrow, the Motion to Dismiss or, in the Alternative, for Stay Pending Proper Service (the "Prior Motion") and the Supplemental Motion to Dismiss or, in the Alternative, for Stay Pending Compliance with Minnesota CHIPS Law (the "Supplemental Motion"), both previously filed in this matter and both currently pending and awaiting ruling. Every factual statement, exhibit, and authority in those filings is incorporated herein as though fully set forth. This motion asks the Court to act on all three filings together: to rule, in writing, on the Prior Motion and the Supplemental Motion without further delay, and to grant the immediate, threshold relief warranted by the EPCH notice defect addressed below.

I. FACTUAL BACKGROUND — CONSISTENT WITH THE RECORD ALREADY BEFORE THE COURT

The chronology below is drawn from, and is fully consistent with, the chronology set out in the Prior Motion and the Supplemental Motion. It is restated here only as necessary to frame the notice defect that is the subject of this motion and the expedited relief it requests.

- On a Friday, my wife was arrested for domestic assault. I was identified by law enforcement as the non-offending parent and the victim of the incident.
- The children remained in my sole care, safely, from that Friday through the following Monday at approximately noon — approximately seventy-two hours — without any action by the Department.
- On Monday at approximately noon, Department personnel and a police officer arrived at my home and required me to submit to a urinalysis under explicit threat that my children would be removed if I refused.
- I immediately and visibly objected to contamination in the specimen container; I never signed or certified the sample as accurate.
- The Department dispatched an officer to verify whether the Domestic No Contact Order (“DNCO”) prevented my wife from being with the children if I left. The officer confirmed it did not.
- I was instructed by the Department to leave my home, and was told that the children would remain in the home with their mother.
- The children remained home, under no restriction, after I left.
- After I left — and only after I left — the Department filed an emergency hold citing the contested urinalysis, evidence pertaining to a parent who, by that point, was no longer in the home.
- I was not served with the petition or any supporting documents before the emergency hold was filed.
- I received no notice — written, verbal, telephonic, or otherwise — that an Emergency Protective Care Hearing had been scheduled, was pending, or had occurred.
- The Emergency Protective Care Hearing was conducted, and concluded, without my knowledge and without my participation. I did not learn that the hearing had already taken place until after it had concluded.
- On July 6, 2026, I spoke in person with the responding law enforcement officer and confirmed that a check of the DNCO’s applicability to my children had in fact been performed, and that the officer’s body-worn camera was operating during the relevant events, as set out in my Supplemental Notice to Preserve Evidence filed in this matter.

Because the Department’s own instruction that I leave the home is what deprived me of a fixed address, and because the Department never served me or otherwise notified me of the EPCH, the absence of notice here is not a mere administrative oversight collateral to the case — it is a direct, foreseeable consequence of the Department’s own sequence of conduct, as more fully set out in the Prior Motion and the Supplemental Motion.

II. THE CURRENT DOMESTIC NO CONTACT ORDER SHOULD BE VACATED TO PERMIT FAMILY REUNIFICATION

A Domestic No Contact Order (“DNCO”) between myself and my wife remains in effect. I did not request that order; it was imposed by the State in connection with the domestic assault incident described above, and I have complied with its terms in full.

I left our home when the Department directed me to do so, and I did so with the understanding, based on the Department’s own direction and the officer’s confirmation described above, that the children would remain safely in the home with their mother while I complied with the DNCO. I relied on that direction in leaving.

Notwithstanding my compliance, and notwithstanding that nothing has changed since that time to introduce any new danger, the Department subsequently filed to remove the children as well, so that the entire family — myself, my wife, and our children — is now separated. That result followed directly from my compliance with the Department’s own instructions, not from any new act or omission on my part or my wife’s.

I do not ask this Court to disregard whatever protective purpose the DNCO may still serve as between myself and my wife. I ask the Court to recognize that the DNCO does not itself justify keeping our children from either of us: the record already establishes that the DNCO did not prevent my wife from safely caring for the children, and no danger to the children has been identified other than the fact of the ongoing separation itself. Separating an entire family — two children from both of their parents — on the strength of an order neither parent requested, and as a consequence of my own compliance with the Department's direction, is a disproportionate result that this Court has the authority, and I submit the obligation, to correct.

I ask that the Court vacate or modify the current DNCO to the extent necessary to permit our family to be reunited, and that B.J.C. and K.C.C. be returned home, where the only continuing circumstance is the separation this motion asks the Court to end.

III. THE DEPARTMENT MAY NOT SHIFT THE BURDEN OF JUSTIFYING EMERGENCY REMOVAL ONTO THE PARENT AFTER THE FACT

The burden of establishing that an emergency justified removal rests on the Department, not on the parent, and that burden must be met by evidence of an objective emergency existing at the time the Department acted — not satisfied after the fact by requiring the parent to explain away or disprove concerns raised only once custody has already been taken. Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii).

The sequence here runs in the opposite direction. B.J.C. and K.C.C. remained safely in my sole care for approximately seventy-two hours, without incident and without any Department involvement. Only after that extended, uneventful period did the Department obtain the urinalysis specimen it now relies on — collected under explicit threat that my children would be removed if I refused, and to which I visibly objected at the time due to contamination in the specimen container. The Department then invoked that contested specimen, after the fact, as the basis for the emergency hold, rather than identifying any objective emergency that existed when it first intervened.

A parent cannot lawfully be made to bear the burden of disproving an emergency that the Department did not establish existed at the relevant time. Requiring a parent to rebut, explain, or disprove concerns raised only after removal has already occurred inverts the statutory and constitutional allocation of that burden, and allows an emergency action to be justified retroactively rather than tested against the circumstances that actually existed when the Department acted.

This is not merely a procedural technicality specific to this case. Defending an emergency action after it has already been taken, rather than establishing the emergency before or at the time of intervention, is a recognized pattern of concern in contested family-law and child-protection matters generally, where post-hoc justification can be used to sustain a decision regardless of whether the circumstances actually warranted it at the time. That approach sits uneasily with the best-interests-of-the-child standard that governs these proceedings: a standard centered on the child's welfare is not served by defending a decision after it has been made, but by making the correct decision, on the circumstances that actually existed, in the first instance. The Court should not permit the Department's post-hoc reliance on the contested urinalysis — obtained only after seventy-two hours of demonstrably safe care, and only under threat of removal — to substitute for the objective, contemporaneous emergency that Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii), requires.

IV. THIS IS A NOTICE AND OPPORTUNITY-TO-BE-HEARD ISSUE, NOT A MERE DISAGREEMENT WITH THE OUTCOME

I want to be precise about what this motion is, and is not. I am not simply asking this Court to reconsider whether removal was the right decision on the merits. I am asking this Court to recognize that the hearing specifically created by law to test that decision — the Emergency Protective Care Hearing — took place without me, and that a hearing a parent cannot attend because the parent was never told it was happening is not a hearing that satisfies due process. It is a proceeding conducted in that parent's absence and, functionally, in secret as to that parent.

V. FUNDAMENTAL LIBERTY INTEREST AT STAKE

Parents possess a recognized fundamental liberty interest in the care, custody, and control of their children. *Troxel v. Granville*, 530 U.S. 57, 65 (2000) (parental interest in the care, custody, and control of children is "perhaps the oldest of the fundamental liberty interests recognized by this Court"); *Santosky v. Kramer*, 455 U.S. 745, 753 (1982) (parental interest in the parent-child relationship is "sufficiently fundamental to come within the finite class of liberty interests protected by the Fourteenth Amendment"); *Stanley v. Illinois*, 405 U.S. 645, 651 (1972) (a parent's interest in the children he has raised "undeniably warrants deference and, absent a powerful countervailing interest, protection"). Any interference with that interest — and any hearing that determines whether that interference continues — must satisfy the process the Constitution requires.

VI. NOTICE

"An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). Notice must be given "at a meaningful time and in a meaningful manner"; notice supplied only after the fact satisfies neither requirement. *Memphis Light, Gas & Water Div. v. Craft*, 436 U.S. 1, 14 (1978).

I was not served with the petition or supporting documents before the EPCH. I received no notice — by mail, telephone, electronic communication, or otherwise — that the EPCH was scheduled or pending. I was unable to appear. I was unable to challenge the allegations against me, present evidence on my own behalf, or cross-examine any witness the Department presented at that hearing.

VII. OPPORTUNITY TO BE HEARD

"The fundamental requirement of due process is the opportunity to be heard at a meaningful time and in a meaningful manner." *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976); accord *Armstrong v. Manzo*, 380 U.S. 545, 552 (1965). Due process forbids a state from adjudicating matters affecting fundamental family interests without affording a meaningful opportunity to be heard. *Boddie v. Connecticut*, 401 U.S. 371, 378 (1971). A parent who is never told that a hearing determining his children's placement is occurring has, by definition, been afforded no opportunity to be heard at that hearing — meaningful or otherwise.

VIII. CONTINUING HARM COMPELLING IMMEDIATE RETURN OF THE CHILDREN

The deprivation at issue here is not a single, completed event. It is ongoing. Every day that the current placement continues without my having had a meaningful opportunity to be heard is a day on which the constitutional and statutory defects identified in this motion, the Prior Motion, and the Supplemental Motion continue to operate against me and against my children. Continued separation of B.J.C. and K.C.C. from a fit, non-offending parent, on the strength of a hearing I was never permitted to attend, is itself the harm this motion asks the Court to end — through the immediate return of the children, not merely through a future hearing date.

This Court should not wait for the ordinary course of proceedings to address constitutional defects of this kind, because delay itself compounds the harm those defects have already caused. See *Zadvydas v. Davis*, 533 U.S. 678, 690 (2001) (liberty deprivations must be reasonably related in scope and duration to their purpose); *United States v. Salerno*, 481 U.S. 739, 748 (1987) (deprivation of a fundamental interest must be narrowly focused in duration).

IX. WHY EXPEDITED AND, TO THE EXTENT POSSIBLE, EX PARTE CONSIDERATION IS APPROPRIATE

I ask the Court to consider this motion, together with the Prior Motion and the Supplemental Motion, on an expedited basis, and to the extent its rules and procedures permit, without awaiting the ordinary briefing and hearing schedule, for the following reasons:

- The underlying defects — a completed hearing conducted without notice to a parent holding a fundamental liberty interest in the outcome, and fully briefed motions to dismiss that remain undecided — are not ones

that improve with the passage of time; every additional day of separation increases the harm this motion seeks to remedy.

- The relief requested is threshold and, in significant part, already ripe: the Prior Motion and the Supplemental Motion have been fully briefed and are presently before this Court awaiting decision, and this motion asks only that the Court rule on them, in writing, without further delay.
- I have already filed, and this Court already has before it, the Prior Motion and the Supplemental Motion, which set out in full the factual chronology and legal authority underlying my objections; this motion does not require the Court or the Department to prepare an extensive new record from scratch.
- Because I was excluded from the EPCH itself, ordinary process — waiting for the next regularly scheduled hearing — would mean that the only hearing that has occurred to test the emergency removal in this case remains one at which I was never heard, for an indefinite additional period, while my children remain separated from me.

To the extent this Court's rules do not permit fully ex parte relief on a matter of this kind without notice to the Department, I ask in the alternative that the Court set the earliest possible expedited hearing date, on shortened notice to the Department, and that the Court in the meantime issue written rulings on the Prior Motion and the Supplemental Motion, so that the defects identified in all three filings are remedied without further unnecessary delay.

X. DECLARATION

I declare, under penalty of perjury under the laws of the State of Minnesota, that the following statements are true and correct to the best of my knowledge:

- I was not personally served with the petition, the affidavits, or any supporting documents in this matter before the Emergency Protective Care Hearing occurred.
- I did not receive notice, in any form, of the date, time, or existence of the Emergency Protective Care Hearing before it occurred.
- I first learned that the Emergency Protective Care Hearing had already taken place after it had concluded, through subsequent contact regarding this matter.
- I have not, to date, been provided with a copy of the Emergency Protective Care Order, the hearing notice, any proof of service purporting to show that I was served, or the affidavits or reports submitted to the Court in connection with that hearing.
- I have not had any opportunity, at any point since the events described in this motion and in the Prior Motion, to appear before this Court, contest the allegations against me, present evidence, or cross-examine any witness regarding the basis for my children's continued placement outside my care.

I declare under penalty of perjury that the foregoing is true and correct.

/s/ James Chapman

James Chapman (electronically signed), Pro Se — Father

XI. REQUEST FOR PRODUCTION OF COURT FILE DOCUMENTS

Because I have not been served and have not had access to the record underlying the Emergency Protective Care Hearing, I respectfully request that the Court order the Department, or direct the Court Administrator, to promptly provide me with copies of the following:

- The petition and all attachments filed in this matter;
- The Emergency Protective Care Order entered following the EPCH;

- The notice of hearing for the EPCH, if any was issued, and any documentation of how and to whom it was directed;
- Any proof of service or affidavit of service purporting to reflect service of the petition or notice of hearing upon me;
- All affidavits, reports, safety assessments, and other written submissions presented to the Court in connection with the EPCH; and
- The audio or written record of the EPCH itself, to the extent one exists and I am legally entitled to receive it.

XII. RELIEF REQUESTED

For the reasons set out above and in the Prior Motion and Supplemental Motion, and given the continuing, compounding harm of ongoing family separation, I respectfully request that this Court grant the following relief, on an expedited and, to the extent possible, ex parte basis:

A. Immediate Return of the Children

- Order the immediate return of B.J.C. and K.C.C. to my care, as the fit, non-offending parent, given that the only hearing to test the emergency removal occurred without notice to me and without any opportunity for me to be heard;
- To the extent the Court determines that immediate return cannot be ordered ex parte without notice to the Department, set the earliest possible expedited hearing on that question, on shortened notice, and order interim relief pending that hearing, including expanded parenting time and contact;

B. Vacatur of the Current Domestic No Contact Order

- Vacate or modify the current Domestic No Contact Order to the extent necessary to permit contact and reunification between myself and my wife, and between both parents and B.J.C. and K.C.C., given that the order was not requested by either parent, that it does not itself present any danger to the children, and that it now operates only to prolong the separation of the entire family;

C. Dismissal of the Petition

- Dismiss the petition, for the reasons set out in the Prior Motion and the Supplemental Motion and incorporated herein, including the absence of an objective emergency at the time the hold was filed, the absence of reasonable efforts or a safety plan, and the absence of service and notice required by Minnesota law and the Fourteenth Amendment;
- In the alternative, vacate or stay the continued effect of the Emergency Protective Care Order to the extent it was entered without notice to me and without my having had any opportunity to be heard;

D. Written Rulings on Pending Motions

- Issue prompt written rulings, with findings of fact and conclusions of law, on the Prior Motion (Motion to Dismiss or, in the Alternative, for Stay Pending Proper Service), the Supplemental Motion (Supplemental Motion to Dismiss or, in the Alternative, for Stay Pending Compliance with Minnesota CHIPS Law), and this motion, addressing at minimum: (a) whether I received notice of the Emergency Protective Care Hearing, and if not, when and how that failure occurred; (b) whether the Emergency Protective Care Hearing, conducted without my participation, satisfied the due process requirements of the Fourteenth Amendment and Minnesota law; (c) whether an objective emergency existed at the time the emergency hold was filed within the meaning of Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii); (d) whether the statutory prerequisites of Minn. Stat. § 260C.178, subd. 1(e)–(f) and the reasonable-efforts requirement of Minn. Stat. § 260.012 were satisfied; and (e) what relief is required to remedy any defect found;

E. Additional Relief

- Order the Department to provide the documents identified in Part XI above without further delay;
- Order that any further hearing affecting the custody or placement of B.J.C. and K.C.C. not proceed without confirmed, documented notice to me sufficient to satisfy *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306 (1950), and Minn. R. Juv. Prot. P. 44.02;
- Order the immediate preservation of all evidence identified in the Prior Motion, the Supplemental Motion, and the Supplemental Notice to Preserve Evidence filed in this matter; and
- Grant such further relief as the Court deems just and appropriate.

This motion does not waive, narrow, or supersede any issue raised in the Prior Motion or the Supplemental Motion, all of which remain fully preserved for this Court's consideration and, if necessary, for appellate review. I likewise reserve all rights and remedies available to me under state and federal law, including but not limited to claims under 42 U.S.C. § 1983, without asking this Court to adjudicate those claims today.

CONCLUSION

A hearing a parent does not know is happening is not a hearing that parent has been given an opportunity to attend, and motions that have been fully briefed and remain undecided leave in place the very harm they seek to remedy. I ask this Court to treat the notice defect identified in this motion, and the pending Prior Motion and Supplemental Motion, with the urgency the continuing separation of my children requires: to rule on all three filings in writing, and to order the immediate return of B.J.C. and K.C.C. and dismissal of the petition, at the earliest possible date.

Respectfully submitted,

/s/ James Chapman

James Chapman (electronically signed)

Pro Se — Father

CONTROLLING AUTHORITIES · *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306 (1950) · *Memphis Light, Gas & Water Div. v. Craft*, 436 U.S. 1 (1978) · *Mathews v. Eldridge*, 424 U.S. 319 (1976) · *Armstrong v. Manzo*, 380 U.S. 545 (1965) · *Boddie v. Connecticut*, 401 U.S. 371 (1971) · *Troxel v. Granville*, 530 U.S. 57 (2000) · *Santosky v. Kramer*, 455 U.S. 745 (1982) · *Stanley v. Illinois*, 405 U.S. 645 (1972) · *Zadvydas v. Davis*, 533 U.S. 678 (2001) · *United States v. Salerno*, 481 U.S. 739 (1987) · Minn. Stat. § 260C.151 · Minn. Stat. § 260C.175, subd. 1 · Minn. Stat. § 260C.178, subd. 1 · Minn. Stat. § 260.012 · Minn. R. Juv. Prot. P. 44.02 · 42 U.S.C. § 1983

STATE OF MINNESOTA
COUNTY OF WADENA — SEVENTH JUDICIAL DISTRICT
In the Matter of the Dependency Proceeding Concerning B.J.C. and K.C.C.

Court File No. 80-JV-26-492
Case Type: Child in Need of Protection or Services (CHIPS)

[PROPOSED] ORDER ON EX PARTE / EXPEDITED MOTION FOR IMMEDIATE RETURN OF CHILDREN, DISMISSAL OF
PETITION, AND WRITTEN RULINGS ON PENDING MOTIONS

This matter comes before the Court on the Motion for Expedited Relief: Immediate Return of Children, Dismissal of Petition, and Written Rulings on Pending Motions, filed by James Chapman, father, pro se, together with the previously filed Motion to Dismiss or, in the Alternative, for Stay Pending Proper Service (filed July 2, 2026), and the Supplemental Motion to Dismiss or, in the Alternative, for Stay Pending Compliance with Minnesota CHIPS Law. Having reviewed the motion(s), any response, and the record, the Court FINDS and ORDERS as follows:

A. Notice and Opportunity to Be Heard

- ☐ The Court finds that the father did not receive notice of the Emergency Protective Care Hearing and was not afforded an opportunity to be heard, in violation of due process and/or Minn. R. Juv. Prot. P. 44.02.
- ☐ The Court declines to make this finding at this time and orders further proceedings as set forth below.

B. Immediate Return of the Children

- ☐ IT IS ORDERED that B.J.C. and K.C.C. shall be immediately returned to the care of James Chapman.
- ☐ IT IS ORDERED, in the alternative, that an expedited hearing on this question shall be held on shortened notice on _____, 2026, and that pending that hearing, the father shall be afforded the following interim relief:
_____.

C. Domestic No Contact Order

- ☐ IT IS ORDERED that the existing Domestic No Contact Order is vacated / modified to the extent necessary to permit contact and reunification between the parents and B.J.C. and K.C.C.
- ☐ The Court declines to vacate or modify the Domestic No Contact Order at this time.

D. Dismissal of the Petition

- ☐ IT IS ORDERED that the petition is DISMISSED for the reasons set forth in the Prior Motion and the Supplemental Motion.
- ☐ IT IS ORDERED, in the alternative, that the Emergency Protective Care Order is vacated / stayed pending further proceedings.
- ☐ The Court declines to dismiss or stay at this time.

E. Written Rulings on Pending Motions

IT IS FURTHER ORDERED that the Court shall issue written rulings, with findings of fact and conclusions of law, on the Prior Motion, the Supplemental Motion, and this motion, on or before _____, 2026.

F. Document Production and Notice Going Forward

IT IS FURTHER ORDERED that the Department and/or Court Administrator shall promptly provide James Chapman with the documents identified in his motion, including the petition and attachments, the Emergency Protective Care Order, any notice of hearing and proof of service, and all affidavits, reports, and safety assessments submitted in connection with the Emergency Protective Care Hearing; and that no further hearing affecting the custody or placement of B.J.C. and K.C.C. shall proceed without confirmed, documented notice to James Chapman sufficient to satisfy due process and Minn. R. Juv. Prot. P. 44.02.

IT IS SO ORDERED.

Dated: _____

Judge of District Court